

1 ENGROSSED SENATE
2 BILL NO. 1630

By: Thompson of the Senate

3 and

4 Moore of the House
5

6 An Act relating to schools; amending 70 O.S. 2021,
7 Section 1-109, as last amended by Section 1, Chapter
8 480, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1-109),
9 which relates to the length of the school year;
10 allowing a school district or charter school to count
11 certain day or number of hours toward certain
12 requirement under certain circumstances; providing an
13 effective date; and declaring an emergency.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 70 O.S. 2021, Section 1-109, as
16 last amended by Section 1, Chapter 480, O.S.L. 2025 (70 O.S. Supp.
17 2025, Section 1-109), is amended to read as follows:

18 Section 1-109. A. For all public schools in this state, school
19 shall actually be in session and classroom instruction offered:

20 1. For not less than one hundred eighty-one (181) days;

21 2. For not less than one thousand eighty-six (1,086) hours each
22 school year, if a district board of education adopts a school-hours
23 policy and notifies the State Board of Education prior to October 15
24 of the applicable school year;

25 3. Beginning with the 2025-2026 school year, for not less than
one thousand eighty-six (1,086) hours with a minimum of one hundred

1 sixty-six (166) days of instruction each school year, if a district
2 board of education adopts a school-hours policy and notifies the
3 State Board of Education prior to October 15 of the applicable
4 school year; or

5 4. Beginning with the 2025-2026 school year, for not less than
6 one thousand eighty-six (1,086) hours each school year, if a
7 district board of education adopts a school-hours policy, notifies
8 the State Board of Education prior to October 15 of the applicable
9 school year, and meets the requirements established by the State
10 Board of Education pursuant to subsection H of this section.

11 B. A school district may not count more than thirty (30) hours
12 each school year that are used for attendance of professional
13 meetings toward the one hundred eighty-one (181) days or one
14 thousand eighty-six (1,086) hours of classroom instruction time
15 required in subsection A of this section.

16 C. Teachers off contract with an employing district shall not
17 be required by the employing school district to attend professional
18 meetings unless the teacher is paid additional compensation for the
19 additional time. Teachers may be paid additional compensation for
20 attending professional meetings in excess of their contract term.
21 Subject to district board of education policy or collective
22 bargaining agreement, additional paid professional days may be
23 granted for individual teachers to attend or participate in
24 professional meetings, staff development training, or National Board

1 certification portfolio development as provided for in Section 6-
2 204.2 of this title.

3 D. A school district may authorize parent-teacher conferences
4 to be held during a regular school day. If authorized by the school
5 district, parent-teacher conferences shall be counted as classroom
6 instruction time for no more than six (6) hours per semester, for a
7 total of twelve (12) hours per school year.

8 E. A school district may maintain school for less than a full
9 school year only when conditions beyond the control of school
10 authorities make the maintenance of the term impossible and the
11 State Board of Education has been apprised and has expressed
12 concurrence in writing.

13 F. The State Board of Education shall establish criteria for an
14 extended-day schedule for schools subject to paragraph 1 of
15 subsection A of this section. The criteria shall:

16 1. Prescribe a lengthened school day within limits determined
17 not to be detrimental to quality instruction;

18 2. Ensure that the schedule is equivalent in annual hours of
19 instruction to the one-hundred-eighty-one-day school year specified
20 in paragraph 1 of subsection A of this section; and

21 3. Be consistent with the provisions of this section and
22 Sections 1-111 and 1-112 of this title but may result in fewer
23 annual days of instruction.

24

1 G. Notwithstanding the provisions of subsection F of this
2 section, a school district board of education subject to paragraph 1
3 of subsection A of this section may adopt and implement an extended-
4 day schedule subject to the following requirements:

5 1. The annual number of hours of instruction shall equal or
6 exceed one thousand eighty-six (1,086) hours, which is the
7 equivalent of one hundred eighty-one (181) days of instruction as
8 specified in subsection A of this section for six (6) hours each day
9 as specified in Section 1-111 of this title;

10 2. The annual number of days of instruction shall equal or
11 exceed one hundred eighty-one (181) days as specified in subsection
12 A of this section;

13 3. The schedule adopted shall be consistent with the provisions
14 of Sections 1-111 and 1-112 of this title, except that for not more
15 than one (1) day per week, a school day shall consist of not less
16 than five (5) hours devoted to academic instruction in a regular
17 classroom setting;

18 4. The district shall hold a public hearing prior to the
19 adoption of an extended-day schedule authorized pursuant to this
20 subsection; and

21 5. The district shall document the impact on student
22 achievement as determined by the academic performance data score and
23 any other relevant factors that are a result of implementation of an
24 extended-day schedule authorized pursuant to this subsection and

1 provide an annual report to the State Board of Education of the
2 results. If improvement in student achievement cannot be documented
3 in the report, the district board of education shall revoke
4 authorization as provided by this subsection. If the district board
5 of education does not revoke authorization after student achievement
6 is not documented in the report, the State Board of Education may
7 deny accreditation of any school in violation of this subsection.

8 H. Beginning with the 2021-2022 school year, a school district
9 board of education may adopt a school-hours policy as provided for
10 by paragraph 4 of subsection A of this section only if it meets or
11 exceeds the minimum guidelines for student performance and school
12 district cost savings established by the State Board of Education.
13 The State Board of Education shall promulgate rules, subject to
14 approval by the Legislature, establishing the minimum guidelines for
15 student performance and school district cost savings.

16 I. If subject to paragraph 2 of subsection A of this section, a
17 district board of education or designee may elect to close a school
18 during the school day for inclement weather purposes. In such an
19 event, the number of hours incurred in classroom instruction time
20 prior to school closure shall be counted toward the one thousand
21 eighty-six (1,086) hours per year requirement.

22 J. 1. Except as provided for in paragraph 2 of this
23 subsection, beginning with the 2026-2027 school year a school
24 district or charter school shall not count days or portions of days

1 when school is closed and virtual instruction is provided toward the
2 one hundred eighty-one (181) days or one thousand eighty-six (1,086)
3 hours of classroom instruction time required by subsection A of this
4 section. For the purposes of this subsection, "virtual instruction"
5 means the use of the Internet or other digital information
6 transmission systems as a form of instruction.

7 2. Beginning with the 2026-2027 school year, a school district
8 or charter school may count up to two (2) days or twelve (12) hours
9 when school is closed and virtual instruction is provided toward the
10 one hundred eighty-one (181) days or one thousand eighty-six (1,086)
11 hours of classroom instruction time required by subsection A of this
12 section only if:

13 a. the Superintendent of Public Instruction has approved
14 the virtual instruction plan submitted by a school
15 district board of education or charter school
16 governing board. A school district board of education
17 or charter school governing board shall approve its
18 virtual instruction plan, publish the plan on the
19 website for the school district or charter school, and
20 submit it to the Superintendent of Public Instruction
21 by November 1, 2025. The Superintendent shall approve
22 or disapprove all submitted virtual instruction plans
23 by January 31, 2026. A school district board of
24 education or charter school governing board shall

1 review its virtual instruction plan annually and
2 approve any necessary revisions for submission to the
3 Superintendent of Public Instruction by November 1
4 each subsequent year, and the Superintendent shall
5 approve or disapprove submitted plans by January 31
6 each subsequent year. If a plan is disapproved, the
7 school district board of education or charter school
8 governing board may approve a revised plan, publish it
9 on the website for the school district or charter
10 school, and submit it to the Superintendent. The plan
11 shall include a virtual needs assessment which shall
12 address availability of technology infrastructure to
13 deliver virtual instruction. The plan shall also
14 address how the school district or charter school
15 plans to provide:

- 16 (1) instruction to students on an Individualized
- 17 Education Program (IEP),
- 18 (2) child nutrition services, and
- 19 (3) transportation for students enrolled in
- 20 technology center school courses or programs,

21 b. a state of emergency or proclamation has been issued
22 by the Governor for a specific reason relating to
23 school district or charter school operations, and
24

1 c. the school district board of education or charter
2 school governing board approves the use of virtual
3 instruction.

4 3. A school district or charter school may count up to one (1)
5 day or six (6) hours when a high school site is completing statewide
6 assessments required by Section 1210.508 of this title and virtual
7 instruction is provided toward the two (2) days or twelve (12) hours
8 allowed pursuant to paragraph 2 of this subsection if the school
9 district board of education or charter school governing board
10 approves a virtual instruction day for high school-only sites for
11 those students not taking the required assessments for eleventh-
12 grade public school students if the school district or charter
13 school attests that it has limited space and staffing to administer
14 the assessments in a safe and secure environment.

15 4. The provisions of this subsection shall not apply to
16 statewide virtual charter schools or full-time virtual education
17 programs operated by a school district.

18 K. By June 30, 2027, and by June 30 each subsequent year, the
19 State Department of Education shall publish on its website and
20 electronically submit to the Governor, the President Pro Tempore of
21 the Senate, and the Speaker of the House of Representatives a report
22 with information regarding the use of virtual instruction as
23 authorized by subsection J of this section. The report shall
24 include, at a minimum:

1 1. The school districts and charter schools that closed school
2 and provided virtual instruction as authorized by subsection J of
3 this section and the length of time virtual instruction was
4 provided; and

5 2. The reason for which school was closed and virtual
6 instruction was provided.

7 L. Nothing in this section shall be construed as affecting the
8 right of an employing school district to require teachers as defined
9 in Section 6-101.3 of this title to work in excess of the one
10 thousand eighty-six (1,086) hours required for student instruction.
11 In addition, nothing in this section shall be construed to affect
12 the Fair Labor Standards Act of 1938 status of any school district
13 employee.

14 M. The provisions of this section shall not prohibit the
15 Oklahoma School for the Blind or the Oklahoma School for the Deaf
16 from adopting an alternative school-hours policy if the Oklahoma
17 School for the Blind or the Oklahoma School for the Deaf notifies
18 and receives approval from the State Board of Education prior to
19 October 15 of the applicable school year.

20 SECTION 2. This act shall become effective July 1, 2026.

21 SECTION 3. It being immediately necessary for the preservation
22 of the public peace, health, or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the Senate the 10th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives
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